

24STCV30816 24STCV30816

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Case Number: 24STCV30816 Hearing Date: July 7, 2026 Dept: 617

Dept.

617

Date:

7-7-26

Case

#: 24STCV30816

Trial

Date: 8-17-26

JUDGMENT ON THE PLEADINGS

MOVING

PARTY: Defendant, FCA US LLC

RESPONDING

PARTY: Plaintiff, Ninna J Partida

RELIEF

REQUESTED

Motion

for Judgment on the Pleadings as to Sixth Cause of Action

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Ninna J Partida sued Defendant FCA US LLC, alleging Defendant failed to promptly replace her car or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also asserts claims for breach of the implied warranty of merchantability and fraudulent inducement. She additionally brings a negligent repair cause of action against dealership Rydell Chrysler Dodge Jeep Ram.

RULING: Granted.

Defendant moves for judgment on the pleadings as to Plaintiff's sixth cause of action for fraudulent inducement by concealment. It argues that her claim is barred by the statute of limitations and the economic loss rule. Defendant further contends that Plaintiff fails to plead her fraud claim with requisite particularity. Plaintiff opposes the motion, denying that her claim is barred and maintaining the sufficiency of her allegations. Defendant's motion is granted with leave to amend.

"A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint." (Richardson-Tunnell v. School Ins. Program for Employees (2007) 157 Cal.App.4th 1056, 1061.) A defendant may move for judgment on the pleadings if the plaintiff's complaint fails to state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The motion may be made as to the entire complaint or to any of the causes of action stated therein. (Id. § 438, subd. (c)(2)(A).) The grounds for the motion must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Id. § 438, subd. (d).) The plaintiff's factual allegations are accepted as true and are given a liberal construction. (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th 468, 515-16.)

Plaintiff's fraud claim is not barred by the economic loss rule. The law recognizes a separation between tort and contract law. Plaintiffs generally cannot recover tort remedies in a contract cause of action. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 19-20.) The economic loss rule and the independent tort principle are related, but

different, concepts that maintain this distinction. The economic loss rule is a specific application of the independent tort principle. (Id. at p. 26.)

The independent tort principle permits tort recovery for breach of contract “if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties’ contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties’ reasonable contemplation when they entered into the contract.” (Id. at p. 23.) The economic loss rule is more narrow, only barring tort recovery “for negligently inflicted economic losses unaccompanied by physical or property damage” (Id. at p. 38.) Therefore, when, as here, an intentional tort claim like fraud is alleged, the economic loss rule does not apply and only the independent tort principle is at issue. (Ibid.)

The

independent tort principle does not bar Plaintiff’s fraudulent inducement by concealment claim. Because fraudulent inducement claims concern wrongful precontractual conduct, the “traditional separation of tort and contract law” does not apply. (Rattagan, supra, 17 Cal.5th at p. 41.)

Indeed, this area of the law “traditionally has involved both contract and tort principles and procedures. For example, it has long been the rule that where a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud.” (Ibid.; Lazar v.

Superior Court (1996) 12 Cal.4th 631, 645; Campbell v. Birch (1942)

19 Cal.2d 778, 791.) It logically follows that doctrines, such as the

independent tort principle, that serve to preserve the distinction between contract and tort law do not apply to fraudulent inducement claims like the one here. (See also Dhital v. Nissan North America, Inc. (2022) 84

Cal.App.5th 828, 841-43 [economic loss rule does not bar fraudulent inducement claim].) Thus, neither the economic loss rule nor the independent tort principle bar Plaintiff’s fraudulent inducement by concealment claim.

Plaintiff’s

fraud claim is, however, barred by the statute of limitations. The statute of limitations for fraud is three years. (Code Civ. Proc., § 338, subd. (d).) The cause of action does not accrue “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) Plaintiff does not state when she discovered Defendant’s alleged fraud, instead claiming that she “discovered Defendants’ wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA’s unsuccessful attempts to repair them.” [Compl. ¶ 8.] The

lack of dates or a timeframe is plainly insufficient to invoke application of the discovery rule. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808-09.) As there is a reasonable possibility that Plaintiff can allege facts properly invoking the discovery rule, she is granted leave to amend. Because the Court grants Defendant's motion on this ground, it does not reach Defendant's particularity argument.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged fraud claim. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendant shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendant

to give notice.